Purpose

Hybrid/Remote (Hybrid) and Remote work is a voluntary arrangement that allows eligible City of Redding employees to request to solely work in a designated area outside the office (Remote), or work in a combination of onsite and remote work locations (Hybrid). Where approved, Hybrid and Remote work is a cooperative arrangement between employees, supervisors, and employing departments.

Hybrid and Remote work can benefit employees, departments, and the community. Benefits may include:

- Ability to function during an emergency when the regular worksite is inaccessible
- Increased productivity
- Efficient use of City resources, including office space
- Recruitment and retention of highly qualified employees
- Greater flexibility for employees and departments
- Improved employee morale and job satisfaction
- Reduced employee absenteeism
- Reduced employee commute time and costs
- Decreased energy consumption, air pollution, traffic, and parking congestion

Onsite work benefits employees, departments, and the community in ways that include:

- Comprehensive communication unfettered by limitations of technology
- Serendipitous, unscheduled collaboration
- Ongoing sharing of institutional knowledge and areas of expertise
- Greater understanding of expectations, job requirements and how to get things done in the organization and community
- Recruitment and retention of highly qualified employees
- Reinforcement of core values and sense of commitment to a common mission
- Improved employee morale and job satisfaction
- Interactions with a broader variety of staff and the community, which facilitate professional growth

The Hybrid/Remote and Remote Work Policy applies citywide and is made available to all eligible employees in their respective departments upon Department Director recommendation and approval by the City Manager or his/her designee. The allowance of full Remote work will be very limited and any allowance will be as determined by the City Manager.

Policy

Hybrid and Remote work are neither an entitlement, nor a vested right as a condition of employment. They are a tool to allow for flexibility in work options where the work is conducive to Hybrid or Remote work. Availability will vary among specific job classifications and department needs/requirements. Not all employees perform work that will qualify for Hybrid or Remote work. Hybrid or Remote work does not change the duties, obligations, responsibilities, or terms and conditions of City employment. Hybrid and Remote workers must comply with all City rules, policies, practices, applicable MOUs, approved work schedules and instructions.

All City employees who request Hybrid or Remote work must have an approved Hybrid/Remote and Remote Work Agreement under this Policy. A City department may have additional hybrid and remote work requirements, guidelines, or procedures, provided they are consistent with, and not less restrictive than, the intent of this Policy. Employees must read the Hybrid/Remote and Remote Work Policy and guidelines and submit a Hybrid/Remote and Remote Work Application and Agreement and Hybrid/Remote and Remote Work Safety Checklist and Self-Certification through the departmental approval process.

The City Manager/designee or a Department Director may deny, end or modify a Hybrid/Remote and Remote Work Agreement at any time by written notice to the employee. Denial, termination, or modification of the Hybrid/Remote and Remote Work Agreement may be accomplished without demonstration of cause being necessary Similarly, a Hybrid or Remote worker may end or request to change a Hybrid/Remote and Remote Work Agreement at any time. For requests to modify the arrangement but continue to work remotely, Department Director approval is required. Employees may be removed from the Hybrid/Remote and Remote Work Program if they do not comply with the terms of their hybrid/remote work agreements or, if in the sole discretion of their respective Department Director, the work being performed remotely is no longer appropriate to be performed remotely or for any other business, operational, performance or personnel-related reason.

While a Hybrid or Remote worker may be assigned a modified work schedule, the schedule must consist of scheduled core work hours when work must be performed to ensure accessibility. The core work hours are 9 am to 3 pm, Pacific Standard Time (PST). Hybrid and Remote workers shall follow standard lunch practices. Employees may not engage in activities while working remotely that would not be permitted at the regular work site, such as child, elder or other dependent care. Notwithstanding the core work hours, Hybrid and Remote workers may take care of personal business during standard break periods, as they would at the regular worksite.

Following approval, remote workers are required to comply with the terms of their Hybrid/Remote and Remote Work Program Agreement and must be accessible and readily available via telephone, video-conference and e-mail, just as they are when working at the main work site.

It is the employee's responsibility to be aware of their work commitments and to make necessary arrangements to attend all meetings while working remotely. When appropriate, meetings can be attended via telephone, video-conference, or other electronic means. For those working on a Hybrid remote assignment, at the supervisor or manager's discretion and upon four (4) hours' notice, employees may be required to report to a central workplace as needed to attend work-related meetings or other events. Those on Remote assignment may be required to report to a central workplace, as directed by the supervisor or manager, within no fewer than three (3) days' notice.

The Hybrid/Remote and Remote Work Policy is generally intended to be cost neutral and the City assumes no responsibility for the set up or operating costs of working remotely, other than City provided computing equipment, as the employee has volunteered for the benefits of working remotely. The City shall not be responsible for personal costs that are associated with remote work, including but not limited to energy, data or maintenance costs, network costs, home maintenance, home workspace furniture, ergonomic equipment, liability for third party claims, or any other incidental costs (e.g. utilities associated with the employee's remote work). Exceptions will be evaluated on a case-by-case basis as needed.

Departments have the sole discretion to provide equipment (PC/laptop, keyboard, mouse, monitor(s), speakers, microphone), software, or supplies to use while working remotely. Departments providing equipment, software, or other supplies to remote workers must reasonably allocate those resources based on operational and workload needs and must notify and work with the Information Technology (IT) Department when allowing use of City resources outside of City property.

All City rules regarding the use of computers and the internet apply while an employee is working remotely.

There is no change to existing compensation or benefits due to remote working. The City will follow state and local tax requirements for where the Remote worker resides.

Any breach of this Policy or the associated agreement by the employee may result in termination of the arrangement and agreement and/or disciplinary action, up to and including termination of employment.

Eligibility

Eligibility for Hybrid and Remote work is based on both the position and the employee. Not every position, assignment or every employee, is well-suited and/or eligible for Hybrid or Remote work. The Department Director and City Manager/designee has the absolute discretion to determine whether a position/assignment/employee is eligible to work remotely or on hybrid bases, utilizing criteria that includes, but is not limited to the following:

A. Position Eligibility:

An employee's position may be suitable for Hybrid or Remote work when the job duties:

- Are independent in nature and remote work will not negatively impact the workload of others
- Are primarily knowledge-based
- Lend themselves to measurable deliverables
- Do not require frequent interaction at the regular worksite with supervisors, colleagues, clients, or the public, in person or by phone (For example, classifications which are the first point of contact at a public counter, or which must supervise the work of others in person, may not be suitable for working remotely.)
- Do not require the employee's immediate presence at the regular worksite to address unscheduled events, unless alternative arrangements for coverage are possible
- Are not essential to the management of on-site workflow

B. Employee Eligibility:

Employees may be suitable for Hybrid or Remote work when they have demonstrated, as determined by the Director:

- Dependability and responsibility
- Effective communication with supervisors, coworkers, and customers
- Demonstrated motivation
- The ability to work independently
- A consistently high rate of productivity
- A high level of skill and knowledge of the job
- The ability to prioritize work effectively
- Good organizational and time management skills

Other considerations include, but are not limited to: the employee's ability to create a functional, reliable, safe, and secure remote workplace; the risk factors associated with performing the employee's job duties from a location separate from the regular worksite; the ability to measure the employee's work performance from a location separate from the regular

worksite; the employee's supervisory responsibilities; the ability to maintain effective working relationships; other considerations deemed necessary and appropriate by the employee's immediate supervisor, Department Director, and the City Manager/designee.

Employees who are not upholding City obligations, such as meeting performance or conduct expectations and standards, as determined by the supervisor/manager, are not eligible to work on a hybrid or remote basis under this Policy. Employees must have rated as at least "Meets Expectations" in all competencies on their most recent performance evaluation (within the past 18 months) in order to be considered for Hybrid or Remote work. If an employee is subsequently marked "Below Expectations" in any competency or is subsequently placed on a Performance Improvement Plan (PIP), Hybrid or Remote work may be suspended until performance improves.

Disciplinary action, including Memos of Counseling and higher levels of discipline and/or being placed on a PIP within the last 12 months may preclude an employee from being able to work hybrid or remotely. Similarly, if an employee is working hybrid or remotely and is the subject of disciplinary action or is being considered for or pending disciplinary action, the Hybrid/Remote and Remote Work agreement will be reviewed for appropriateness.

Agreement Options

Hybrid and Remote work agreements are voluntary and can be on a long-term or short-term basis, regular and recurring, an occasional basis, or any combination thereof.

Regular and recurring means an employee works away from the regular worksite on an established day or days, and on a recurring schedule. This should generally not be more than two days per week for Hybrid Remote work.

Employees who work Hybrid remote on a regular or recurring basis must be available to work at the regular worksite on remote workdays, if needed. Employees must obtain prior authorization from their Department Director to change a regularly scheduled Hybrid remote workday.

Those working solely on a remote basis may be required to be present in the office to attend City business. In these instances, Remote workers will not be paid for commute time or reimbursed for expenses incurred for travelling to the work site or other locations as designated by the employee's supervisor, unless approved by their Department Director prior to the travel. If the Remote worker is approved to attend a conference, the City will pay the difference of travel cost between City facilities and the conference location or the actual cost, whichever is less.

Occasional remote work means an employee works away from the office on an infrequent,

one-time, or irregular basis. This option provides an ideal arrangement for employees who generally need to be in the office, but who sometimes have projects, assignments, or other circumstances that meet the eligibility criteria.

Work Hours

All the rules applicable at the regular worksite are applicable while working hybrid or remotely. That includes, but is not limited to:

- Remote workers must perform designated work during scheduled core work hours as stated in their Hybrid/Remote and Remote Work Program Agreement
- Core hours of work will be required to be between 9 am and 3 pm, Pacific Standard Time
- Employees must account for and report time spent working remotely the same way they would at the regular worksite, or according to the terms of the Hybrid/Remote and Remote Work Agreement
- Employees may work overtime only when directed to do so and approved in advance by the supervisor
- Employees must obtain approval to use vacation, sick, or other leave in the same manner as departmental employees who do not work remotely
- Hybrid and Remote workers who become ill must advise their supervisor and report the hours actually worked, and use sick leave for hours not worked the same way they would at the regular worksite, or according to the terms of the Hybrid Remote/Remote Work Agreement.

Worksite

A Hybrid or Remote worker must designate a work area suitable for performing official business. The employee must perform work in the designated area when working remotely. When working remotely, workers must work in an environment free of distractions that allows them to focus and perform their duties safely and efficiently. Employees are responsible for ensuring their work areas are ergonomic and comply with health and safety requirements covered in the Hybrid/Remote and Remote Work Policy/guidelines/etc. The City and/or department may request video tours of the employee's designated work area to determine compliance with health and safety rules. The remote worker must complete the associated Hybrid/Remote and Remote Work Safety Checklist and Self-Certification Form to ensure compliance. Any change in the conditions established in the Remote Work Safety Checklist and Self-Certification Form must be reported to the Department Director within one (1) business day.

Employees are covered by workers' compensation laws when performing work duties at their designated alternate locations during regular work hours. An employee who suffers a work-

related injury or illness while working hybrid or remotely must notify his or her supervisor and complete any required forms immediately.

The City is not liable for injury to the hybrid or remote worker that occurs outside of the working hours designated in their Hybrid/Remote and Remote Work Program Agreement or while not conducting City work. The City is not liable for damage to an employee's personal or real property while the employee is working at an alternate worksite. The City is not liable for the injury to the hybrid or remote worker's family members, or others within or around the remote worker's home.

Equipment and Supplies

A Hybrid and Remote worker must have a suitable desk/work area and chair to work ergonomically safe and without disruption. A Hybrid and Remote worker must identify the equipment, software, supplies, and support required to successfully work at an alternate location, and must specify those items in the remote work application, and complete the Hybrid/Remote and Remote Agreement form.

If the department does not provide the needed equipment, software, supplies or support, and the employee does not have them, the employee will not be eligible to work remotely. The department will coordinate with the Chief Information Officer/designee to review and approve equipment and software as it relates to network safety and security, as well as track and monitor City-owned equipment utilized by a Hybrid or Remote worker.

Hybrid and Remote workers must immediately contact their supervisors if equipment, connectivity, or other problems prevent them from performing work remotely.

A. <u>City Equipment</u>

Equipment, software, or supplies provided by the City are for City business only. Hybrid and Remote workers do not obtain any rights to City equipment, software, or supplies provided in connection with working remotely. The employee must immediately return all City equipment, software and supplies at the conclusion of the remote work arrangement or at the department's request.

A Hybrid and Remote worker must protect City equipment, software and supplies from possible theft, loss, and damage. Any repair or required maintenance on City-owned equipment will require the item be physically brought into the IT Department, returned to the IT Department as directed by IT staff, or the employee's primary workplace if the issue cannot be resolved remotely by IT staff.

Any equipment, software, files and databases provided by the City shall remain the property of the City. Hybrid and Remote workers must adhere to all software copyright laws, and may not

make unauthorized copies of any City-owned software. Hybrid and Remote workers may not add hardware or software to City equipment without prior written approval.

When a Hybrid and Remote worker is connecting to the City network with a City issued PC or laptop, either a VPN or RDWeb portal connection is acceptable.

B. Personal Equipment

When a Hybrid and Remote worker is connecting to the City network using personal PC or laptop, only a RDWeb portal connection is allowed. Hybrid and Remote workers assume any risk for damages caused by personal devices connected to a City computer. (i.e. keyboard, mouse, monitors, printers) The IT Department will not be responsible for the troubleshooting of personal devices.

Security of Confidential Information

All files, records, papers, or other materials created while working remotely are City property. Hybrid and Remote workers and their supervisors shall identify any confidential, private or personal information and records to be accessed and ensure appropriate safeguards are used to protect them. Any supervisor of the employee may require an employee to work at private locations when handling confidential or sensitive material. To avoid breaches of confidentiality, the printing of any confidential information in remote work locations must be approved by the supervisor of the employee. Likewise, any meetings conducted while working remotely that may divulge sensitive/confidential information must be clearly communicated, and the remote worker will be required to conduct the meeting in a private location so as not to be overheard.

Hybrid and Remote workers are required to log off the City network when not in use and secure equipment when left unattended. Hybrid and Remote workers may not disclose, or leave available for risk of disclosure, confidential or private files, records, materials, or information, and may not allow access to City networks or databases to anyone who is not authorized to have access.

Except as directed by the Chief Information Officer or designee, Hybrid and Remote workers are not to store City documents or materials on their personal computer or device or use their personal e-mail accounts to transfer documents. Documents should be transferred through IT Department approved means such as the use of GoAnywhere file transfer software. All materials should be stored on the City network. Hybrid and Remote workers are required to follow all record retention/management and document disposal policies for all associated documents and work products.

In the event of an incidence of hacking or any compromise of City data and network systems, the Hybrid and Remote worker must notify their supervisor and the IT Department immediately.

Public Records Act Compliance

The California Public Records Act regarding public information and public records apply to remote workers. Public records include any writing containing information relating to the conduct of the public's business prepared, owned, used, or retained by the City regardless of physical form or characteristic. Public information means the contents of a public record. Upon receipt of an appropriate request, and subject to authorized exemptions, a Hybrid or Remote worker must permit inspection and examination of any public record or public information in his or her custody, or stored on a personal computer system, or device, or any segregable portion of a public record, within required time limits. This requirement exists regardless of where the public record is located.

Definitions

A. Hybrid/Remote Work (Hybrid) - An employee who works in a designated area outside of City facilities in combination with working onsite.
B. Remote Work (Remote) – An employee who works solely in a location that is not a City facility. The location could be outside of City of Redding and/or the state of California.
C. Core work hours – Designated hours that all hybrid and remote workers will work at a minimum. Those hours are from 9 am – 3 pm Pacific Standard Time (PST).
D. Confidential information – information or records, whether oral or documentary, in paper, electronic or other form that contains information which is protected from disclosure under the California Public Records Act including but not limited to, all personnel records including performance evaluations and discipline, records of complaints to the City of Redding, police reports, investigatory materials, preliminary draft notes or memoranda not retained in the ordinary course of business, litigation records including attorney-client privileged information, and personal information (i.e. social security numbers, home addresses).

Procedures

Employees must complete the following steps to request to work remotely before beginning to work remotely:

1. Talk with their supervisor to determine eligibility.
2. Complete the following:
    a) Read and agree to the Hybrid/Remote and Remote Work Program Policy.
    b) Read and agree to comply with the Hybrid/Remote and Remote Work Technical Guidelines, all applicable MOUs, overtime policies, City policies/procedures.
3. Complete the Hybrid/Remote and Remote Work Application and Agreement form and the Hybrid/Remote and Remote Work Safety Checklist and Self-Certification

Form.

4. Submit Hybrid/Remote and Remote Work Application and Agreement form and the Hybrid/Remote and Remote Work Safety Checklist and Self-Certification Form to their supervisor. The request will be routed from the supervisor, to the Department Director, Personnel and the City Manager for consideration.
5. If approved the supervisor and Employee will receive notification from Personnel of the approval.

Denial of Application

The City's Hybrid/Remote and Remote Work Policy, and its application in any particular case, is not subject to the grievance procedures in any Memorandum of Understanding or Personnel Policy, or to any other review or appeal procedures. The decision of the Department Director and City Manager/designee to deny an application for remote work is final and also not subject to grievance or appeal. The decision to permit, disallow, suspend or terminate remote work is within the sole discretion of the City Manager. No employee has a right to work remotely even if he/she fulfills the eligibility criteria set forth in this Policy.

Employee Signature: _____

Date: _____